

UPSC INDIAN POLITY

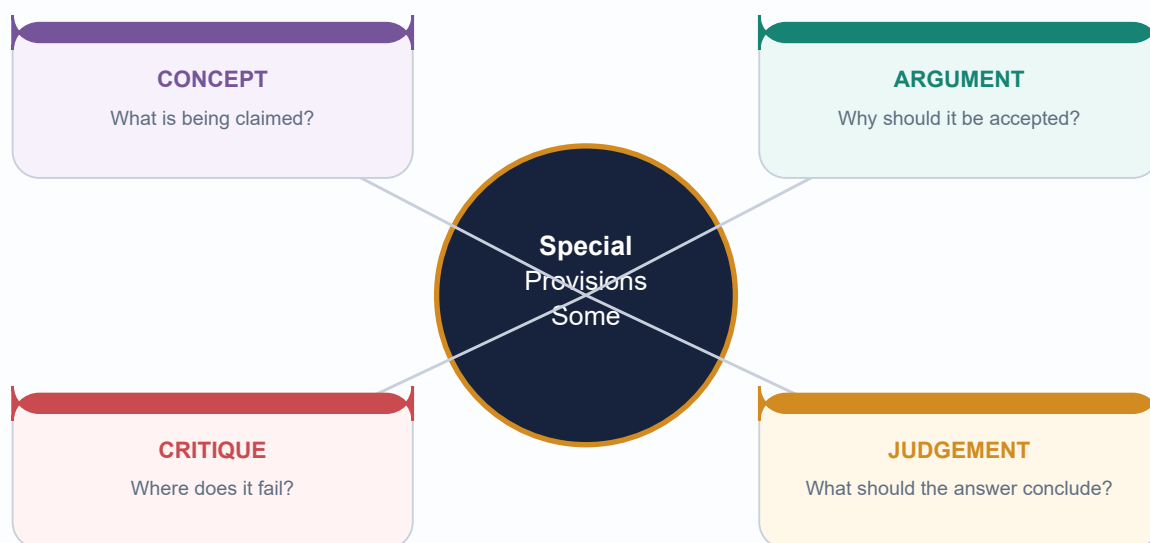
Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: Special-Provisions.md + 22_Special-Provisions.md

Learning cards: 15



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic · **GS Paper:** GS-II · **Grounded in:** Laxmikant Ch. 37.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• greater than □ book · □□ inference · □ current. *Depth version: advanced/22_Special-Provisions.md.*

MUST-KNOW FACTS

1. greater than book · □□ inference · □ current. *Depth version: advanced/22_Special-Provisions.md.*

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation • Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Value
Location	□ Part XXI ("Temporary, Transitional & Special Provisions")
Art 370	Former special status of J&K ; — inoperative since 5 Aug 2019
Art 371–371-J	Special provisions for 12 states
Not original	Added by later amendments

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian
Polity

INTRO & ORIGIN

□ India practises **asymmetric federalism** — some states get **special provisions** to protect tribal customs, backward regions, or law & order. These sit in **Part XXI**, alongside the (now inoperative) **Article 370** for J&K.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

Dimension 1

□ India practises asymmetric federalism — some states get special provisions to protect tribal customs, backward regions, or law & order. These sit in

Dimension 2

greater than □ 12 states with Art 371 provisions: Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh,

Dimension 3

greater than Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa, Karnataka.

STATIC THEORY

- greater than □ 12 states with Art 371 provisions: Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh,
- greater than Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa, Karnataka.

MEMORY HOOK

greater than 12 states with Art 371 provisions: Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh,

MUST-KNOW FACTS

1. India practises **asymmetric federalism** — some states get **special provisions** to protect tribal customs, backward regions, or law & order. These sit in **Part XXI**, alongside the (now inoperative) **Article 370** for J&K.

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Article 370 — the big story

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Polity

INTRO & ORIGIN

□ □ **5 Aug 2019**: J&K's special status was made inoperative; the **J&K Reorganisation Act, 2019** created **J&K (with legislature)** and **Ladakh (without)**. □ In *In Re: Article 370* (11 Dec 2023), the Supreme Court upheld the constitutional steps, directed Assembly elections by Sept 2024, and recorded the Union's assurance that statehood would be restored at the earliest; it did **not set a judicial deadline for statehood**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. ☐ **5 Aug 2019**: J&K's special status was made inoperative; the **J&K Reorganisation Act, 2019** created **J&K (with legislature)** and **Ladakh (without)**. In *In Re: Article 370* (11 Dec 2023), the Supreme Court upheld the constitutional steps, directed Assembly elections by Sept 2024, and recorded the Union's assurance that statehood would be restored at the earliest; it did **not set a judicial deadline for statehood**.

MAINS ANGLE**STUDY LINK**

Special Provisions for Some States (Articles 370–371-J, Part XXI) — **ADVANCED / COMPLETE** → Article 370 — the big story

HIGH**Foundation · Key Art 371 provisions (remember)**

GS-II Indian Polity

INTRO & ORIGIN

☐ **371-A Nagaland & 371-G Mizoram** — Union laws on **customary law / land** don't apply unless the state

Foundation learning layer: concepts → constitutional detail → UPSC application.

KEY ART 371 PROVISIONS (REMEMBER): RECALL MAP**Key Art 371 provisions (remember)**

Dimension 1 ☐ 371-A Nagaland & 371-G Mizoram — Union laws on customary law / land don't apply unless the state	Dimension 2 Assembly consents (strongest protection).
Dimension 3 ☐ 371-D Andhra Pradesh/Telangana — local cadres + Administrative Tribunal.	Dimension 4 ☐ 371-J Karnataka — Hyderabad-Karnataka region reservation (98th Amdt).

STATIC THEORY

- Assembly consents (strongest protection).
- ☐ **371-D Andhra Pradesh/Telangana** — local cadres + Administrative Tribunal.
- ☐ **371-J Karnataka** — Hyderabad-Karnataka region reservation (98th Amdt).
- ☐ **371 Maharashtra/Gujarat** — development boards (Vidarbha, Marathwada, Saurashtra, Kutch).

MUST-KNOW FACTS

1. **371-A Nagaland & 371-G Mizoram** — Union laws on **customary law / land** don't apply unless the state
2. **371-D Andhra Pradesh/Telangana** — local cadres + Administrative Tribunal.
3. **371-J Karnataka** — Hyderabad-Karnataka region reservation (98th Amdt).
4. **371 Maharashtra/Gujarat** — development boards (Vidarbha, Marathwada, Saurashtra, Kutch).

MAINS ANGLE**STUDY LINK**

Special Provisions for Some States (Articles 370–371-J, Part XXI) — **ADVANCED / COMPLETE** → Key Art 371 provisions (remember)

HIGH

Foundation • [Current link](#)GS-II Indian
Polity

NEWS TRIGGER

□ □ **Status 21 Jul 2026:** Assembly elections were held in 2024; restoration of statehood remains an unfulfilled Union assurance. Ladakh's Sixth-Schedule/statehood demands remain political proposals, not enacted constitutional changes. □ □ Full article-wise table, traps & Mains angles: [advanced/22_Special-Provisions.md](#)

INTRO & ORIGIN

Exam-ready treatment of [Current link](#).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — [ADVANCED / COMPLETE](#) → [Current link](#)

HIGH

Advanced • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation



Dimension 1

greater than Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II

Dimension 2

greater than Grounded in: Indian Polity by M. Laxmikant, Ch. 37 (direct check of the local Sixth Revised Edition PDF).

Dimension 3

greater than □ = from source book · □ □ = inference / case law · □ = current affairs.

Dimension 4

greater than Companion: [basic/Special-Provisions.md](#).

STATIC THEORY

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- greater than □ = from source book · □ □ = inference / case law · □ = current affairs.
- greater than *Companion:* [basic/Special-Provisions.md](#).

MUST-KNOW FACTS

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MAINS ANGLE**STUDY LINK**

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Core Foundation

HIGH**Advanced · PART A — ARTICLE 370 (former special status of J&K) □**

GS-II Indian Polity

INTRO & ORIGIN

□ **Art 370 (Part XXI, "Temporary, Transitional & Special Provisions")** gave J&K a special autonomous status — own constitution, separate flag, and Union laws applied only with the state's concurrence (via **Art 35A**, added by a 1954 Presidential Order, on permanent residents/property). □ □ **Abrogation (5 Aug 2019)**: Presidential Orders (C.O. 272/273) + Parliament resolutions rendered Art 370 inoperative; the **J&K Reorganisation Act 2019** split the state into **two UTs — J&K (with legislature) & Ladakh (without)** w.e.f. **31 Oct 2019**. □ □ □ **SC verdict — In Re Article 370 (11 Dec 2023)**: unanimously **upheld** the abrogation; held Art 370 was **temporary** and J&K retained **no internal sovereignty**; directed **Assembly elections by Sept 2024** and recorded the Union's assurance that statehood would be restored "**at the earliest**", without fixing a judicial statehood deadline. □ □ **Status 21 Jul 2026**: Assembly elections were held Sept–Oct 2024 (90-member Assembly constituted); statehood has not been restored.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. **Art 370 (Part XXI, "Temporary, Transitional & Special Provisions")** gave J&K a special autonomous status — own constitution, separate flag, and Union laws applied only with the state's concurrence (via **Art 35A**, added by a 1954 Presidential Order, on permanent residents/property). □ **Abrogation (5 Aug 2019)**: Presidential Orders (C.O. 272/273) + Parliament resolutions rendered Art 370 inoperative; the **J&K Reorganisation Act 2019** split the state into **two UTs — J&K (with legislature) & Ladakh (without)** w.e.f. **31 Oct 2019**. □ □ □ **SC verdict — In Re Article 370 (11 Dec 2023)**: unanimously **upheld** the abrogation; held Art 370 was **temporary** and J&K retained **no internal sovereignty**; directed **Assembly elections by Sept 2024** and recorded the Union's assurance that statehood would be restored "**at the earliest**", without fixing a judicial statehood deadline. □ **Status 21 Jul 2026**: Assembly elections were held Sept–Oct 2024 (90-member Assembly constituted); statehood has not been restored.

MAINS ANGLE**STUDY LINK**

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → PART A — ARTICLE 370 (former special status of J&K) □

HIGH

Advanced · PART B — ARTICLE 371 to 371-J: SPECIAL PROVISIONS FOR 12 STATES □ · Table 1.1

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INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Article	State(s)	Core special provision
□ 371	Maharashtra & Gujarat	Governor's special responsibility for development boards (Vidarbha, Marathwada / Saurashtra, Kutch)
□ 371-A	Nagaland	Parliament laws on Naga customary law, land, civil/criminal justice don't apply unless the Assembly decides; Governor's special law-&-order role
□ 371-B	Assam	Committee of Assembly for Tribal Areas
□ 371-C	Manipur	Committee of Assembly for Hill Areas ; Governor's special responsibility
□ 371-D/E	Andhra Pradesh & Telangana	Equitable public employment/education ("local cadres"); Administrative Tribunal ; Central University (371-E). *371-D extended to Telangana in 2014*
□ 371-F	Sikkim	Assembly ≥30; 1 Lok Sabha seat; protection of population sections (36th Amdt 1975)
□ 371-G	Mizoram	Parliament laws on Mizo customary law, land, justice don't apply unless the Assembly decides; Assembly ≥40
□ 371-H	Arunachal Pradesh	Governor's special law-&-order responsibility; Assembly ≥30

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → PART B — ARTICLE 371 to 371-J: SPECIAL PROVISIONS FOR 12 STATES □

HIGH

Advanced · PART B — ARTICLE 371 to 371-J: SPECIAL PROVISIONS FOR 12 STATES □ · Table 1.2

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INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Article	State(s)	Core special provision
□ 371-I	Goa	Assembly ≥30
□ 371-J	Karnataka	Development board + reservation (education + jobs) for the Hyderabad-Karnataka region (98th Amdt 2012)

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — **ADVANCED / COMPLETE** → PART B — ARTICLE 371 to 371-J: SPECIAL PROVISIONS FOR 12 STATES □

HIGH

Advanced · PART B — ARTICLE 371 to 371-J: SPECIAL PROVISIONS FOR 12 STATES □

GS-II Indian
Polity

INTRO & ORIGIN

□ **Part XXI, Art 371–371-J** — special provisions for **Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa, Karnataka**. Aim: protect tribal/cultural interests, backward regions, or disturbed law & order. **Not in the original Constitution** — added by later amendments.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• □□ **Note:** Art 371-A (Nagaland) & 371-G (Mizoram) give the **strongest protection** — Union laws on customary law/land need Assembly consent. These are distinct from the **Sixth Schedule** (tribal autonomous councils in Assam, Meghalaya, Tripura, Mizoram) and **Fifth Schedule** (scheduled areas).

MUST-KNOW FACTS

1. Part XXI, Art 371–371-J — special provisions for **Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa, Karnataka**. Aim: protect tribal/cultural interests, backward regions, or disturbed law & order. **Not in the original Constitution** — added by later amendments.

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — **ADVANCED / COMPLETE** → PART B — ARTICLE 371 to 371-J: SPECIAL PROVISIONS FOR 12 STATES □

HIGH

Advanced • UPSC Traps

GS-II Indian
Polity

INTRO & ORIGIN

inoperative (2019); SC upheld this (2023).

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS: RECALL MAP

UPSC Traps

Dimension 1 inoperative (2019); SC upheld this (2023).	Dimension 2 Mizoram, 371-H Arunachal); Assam = 371-B.
Dimension 3 Assembly consents.	

STATIC THEORY

- Mizoram, 371-H Arunachal); Assam = 371-B.
- Assembly consents**.

UPSC TRAPS

WRONG: Art 370 has been fully deleted from the Constitution

CORRECT: it still **exists in text** but was rendered

WRONG: Special provisions (Art 371) are in Part III

CORRECT: they are in **Part XXI** ("Temporary, Transitional & Special").

WRONG: Art 371 covers all NE states via one clause

CORRECT: **separate articles** (371-A Nagaland, 371-C Manipur, 371-G

WRONG: 371-A/371-G let Parliament override state customary law

CORRECT: those Union laws ****don't** apply unless the state

WRONG: 371-D applies only to Andhra Pradesh

CORRECT: **extended to Telangana** (2014).

WRONG: Sixth Schedule = Art 371

CORRECT: different mechanisms (Sixth Schedule = autonomous district councils).

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced • CA hooks

GS-II Indian
Polity

NEWS TRIGGER

□ □ **J&K statehood restoration** remains an unfulfilled Union assurance after the 2024 Assembly elections; do not describe it as already enacted or as subject to a deadline imposed by the 2023 judgment. □ □ □ **Ladakh's demand for Sixth Schedule status / statehood** — recurring protests (Leh/Kargil).

INTRO & ORIGIN

□ □ □ Debates on extending special protections (e.g. Art 371-type safeguards) to other regions.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — **ADVANCED / COMPLETE** → □ CA hooks

HIGH

Advanced • Mains angles

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Was the abrogation of Article 370 a step towards genuine integration or an erosion of federal/consent principles? Critically examine in light of the 2023 SC verdict. Asymmetric federalism (Art 371 provisions): how does it accommodate diversity without threatening unity? Ladakh's Sixth Schedule demand — balancing development, ecology and tribal autonomy.

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — **ADVANCED / COMPLETE** → Mains angles

HIGH

Advanced • Verified PYQ application

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Verified PYQ application.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

□ **2025 GS-II Q4 (10 marks, 150 words):** “Discuss the nature of Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganization Act, 2019. Briefly describe the powers and functions of the Assembly of the Union Territory of Jammu and Kashmir.” Route: UT legislature under the 2019 Act -greater than elected law-making and financial/ accountability functions -greater than exclusions and Union/LG override architecture -greater than compare with a State legislature without treating J&K as constitutionally identical to Delhi.

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — **ADVANCED / COMPLETE** → Verified PYQ application

End of Register Notes — UPSC Agent / Copilot CLI